

Plaintiff raised the concept of negligent undertaking in his complaint. At lines 22-27 on page 4 the complaint states that Defendants provided security upon which Plaintiff relied to his harm and which increased the risk of harm suffered. This language apprised H&S of the theories it must now answer on summary judgment. Indeed H&S recognized the presence of the negligent undertaking theory because it propounded discovery on Plaintiff asking him to provide the facts supporting his contention that there was security present upon which he relied, as seen above in discussing H&S's objections to Plaintiff's evidence. As said, Plaintiff's claim that he relied on the presence of security is meritless. He contradicts interrogatory responses flatly stating that he had no knowledge of a security guard. However, the "increased risk of harm" concept must still be explored.

The facts presented to the court do not show any way in which H&S's roving security guard contract increased the risk of harm to Plaintiff or caused Plaintiff's harm. Causation analysis is the same as above: had a guard been posted at the gas station the night of May 8, 2021 it still cannot be said that Plaintiff's harm would have been prevented. Here, though, on negligent undertaking analysis, Plaintiff is also unable to prove that H&S's undertaking increased the risk of him getting robbed and/or shot.

H&S's security undertaking did not create any new peril. (See *University of Southern California v. Superior Court* (2018) 30 Cal.App.5th 429, 450 [failing to enforce campus policy against rowdy frat parties did not increase risk of harm from party; disapproved on other grounds in *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 222 at fn. 9]; *City of Santee v. County of San Diego* (1989) 211 Cal.App.3d 1006, 1015-1016 [increased risk element not satisfied where defendant merely fails to eliminate preexisting risk].) The likelihood of armed robbery at the subject gas station was not increased by H&S's use of a roaming security guard as opposed to a world in which H&S did not provide any form of security.

Plaintiff speculates that the robbers knew the guard was only there on a roving basis and chose to strike when he was away but this is pure speculation. Not only that, this speculation if accepted would still not establish that robbery became more likely because H&S employed a roaming guard than it would have been had H&S not undertaken to provide security at all.

Plaintiff cannot prove his negligence claim against H&S via the negligent undertaking doctrine.

Conclusion. H&S's motion for summary judgment is granted.

Defendant General Motors LLC's Notice of Motion and Motion to Compel Plaintiff's Appearance and Testimony at Deposition and Production of Documents; and for Monetary Sanctions

TENTATIVE RULING

DEFENDANT GENERAL MOTORS, LLC'S MOTION TO COMPEL PLAINTIFF'S APPEARANCE AND TESTIMONY AT DEPOSITION AND PRODUCTION OF DOCUMENTS; AND FOR MONETARY SANCTIONS is DENIED. Per movant's own admission (Exhibit F to GM Motion to Compel), defense counsel was aware on May 18, 2026 that Plaintiff would not be appearing for the May 20, 2026 deposition. Regardless whether there was good cause for the postponement, Defendant had sufficient time to cancel the proceeding. Therefore, any expense incurred by showing up on the 20th with full knowledge the deposition would not be going forward, was of its own making.

Finally, there is no evidence provided of a meaningful meet and confer by GM to reschedule *after* the cancelled deposition. Plaintiff is the only one that provided such evidence of providing alternate dates (albeit after this motion was filed), to which GM purportedly did not respond.

For these reasons the motion is denied and sanctions are denied. However, the parties are ordered to appear for the motion hearing. At that time, the court intends to place the parties into a Zoom breakout room to meet and confer until a new deposition date within the next 30 days is agreed upon. That date will then be put on the record and enforced by the court, as necessary.

TRAN v. WISE AUTO GROUP, et al.
Case No. FCS055892

Motion for Final Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Absent any compelling arguments to the contrary raised at hearing, and applicable to all class members who have neither timely opted out nor objected, the court anticipates granting the final approval motion for the gross settlement amount of \$1,007,367.62, and approving almost all deductions requested in the final approval motion, including those for attorneys fees in the amount of \$335,789.21; litigation costs of \$139,600; PAGA allocation of \$50,000 (\$37,500 to LWDA, \$12,500 to aggrieved employees); and claims administration costs of \$11,250. The court intends to reduce the service awards from the claimed amount of \$45,000 (\$15,000 per named plaintiff) to the amount of \$30,000 (\$10,000 per named plaintiff).

PONGTORN v. RIZO, et al.